

CV-26-007801 In Re GONZALEZ, MICHEL – Petitioner’s Petition for Approval for Transfer of Structured Settlement Payment Rights by and between Michael Gonzalez and MIC-BRY8, LLC Pursuant to California Insurance Code 10134, Et Seq. – CONTINUED to September 29, 2026, at 8:30 am in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The Petition does not include copies of the annuity contract or any qualified assignment agreement or the underlying structured settlement agreement. (Ins. Code, § 10139.5(f)(2).) Petitioner's declaration states that they requested the underlying documents via fax from American General Life Insurance Company. But Petitioner did not submit the underlying documents nor any copies of correspondence demonstrating its reasonable efforts to locate and secure the copies of the underlying documents. The Court is unable to determine the full terms of the transaction, e.g., whether the payee is transferring all or a portion of her future payments. (Ins. Code, § 10139.5(b)(4).) Accordingly, the hearing is CONTINUED to September 29, 2026, at 8:30 am in Department 22. Petitioner to make additional reasonable efforts to locate and secure a copy of the underlying documents. (Ins. Code, § 10139.5(f)(2).) Petitioner to submit a declaration no later than five court days before the hearing regarding such efforts, including as necessary copies of the underlying documents or copies of requests for the underlying documents. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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